

M/S Satya Flour Mill v. Sanjeev Kumar Singh, Executive Engineer

High Court of Judicature at Allahabad · Single Judge · 9 April 2018 · Contempt Application (Civil) No. 1338 of 2018 · **Contempt disposed of; consumer relegated to Clause 6.5 against the revised bill.**

HEADNOTE

In a civil contempt application, the licensee placed a revised bill dated 7 April 2018. The High Court held that a consumer aggrieved by that assessment has adequate machinery under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and disposed of the petition as nothing further survived.

FACTUAL SUMMARY

M/S Satya Flour Mill moved a civil contempt application against Sri Sanjeev Kumar Singh, Executive Engineer. On 15 March 2018 the Court directed that the paper book be served on counsel who had appeared for the Corporation before the writ Court, for instructions, and listed the matter among fresh cases of 9 April 2018. On that date, counsel for the Corporation placed on record a revised bill dated 7 April 2018.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

assessment grievance; Clause 6.5 machinery

HOLDING

Where a revised bill is placed on record in contempt, a consumer aggrieved by that assessment must pursue Clause 6.5 of the U.P. Electricity Supply Code, 2005, which furnishes adequate machinery for redressal; the contempt petition does not survive. ¶ 1-2

PRINCIPLE TAGS

contempt-of-6.5-writ-does-not-redecide-bill In a civil contempt application, the licensee placed a revised bill dated 7 April 2018. The High Court held that a consumer aggrieved by that assessment has adequate machinery under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and disposed of the petition as nothing further survived. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE REVISED BILL DATED 7 APRIL 2018

Left to Clause 6.5 if the applicant is aggrieved by the assessment. ¶ 1-2